

Line 7

Case Name: *Beverly Ann Land v. Ford Motor Company, et al.*

Case No.: 25CV461206

See Order above. (As the moving party has notified the Court that it withdraws this motion, this motion is hereby OFF CALENDAR).

Line 8

Case Name: *Shashank Singh v. Hyundai Motor America, et al.*

Case No.: 25CV461390

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Genesis Motor America (“GMA”) moves under the Federal Arbitration Act, 9 U.S.C. §§ 1-16, and California Code of Civil Procedure Section 1281 *et seq.* to compel arbitration of the claims of Plaintiff Shashank Singh (“Plaintiff”) under their arbitration agreement and to stay this civil action pending the completion of this arbitration. Notice of Motion (the “Motion”) at 1:4-9 (filed: Oct. 1, 2025).

The Motion came on for hearing on June 3, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

In this Song-Beverly Warranty Act case, GMA moves to compel arbitration based on two agreements with Plaintiff Singh: (1) the 2023 Owners Handbook & Warranty Information; and (2) a Bluelink Connected Services Agreement (“CSA”).

As an initial matter, GMA’s request for judicial notice of the complaint in this matter is granted. (Evid. Code, § 452, subd. (d).)

After carefully reviewing the language of these agreements, the circumstances of their alleged execution, and the claims of this case, for reasons the Court will now explain in detail, the Court finds and rules that the Motion is Denied.

1. Analysis of the 2023 Owners Handbook & Warranty Information for the Motion to Compel Arbitration.

The vehicle warranty upon which Singh brings this action is one of a series of warranties contained in a 48-page document titled “2023 Owner’s Handbook and Warranty Information” (“Owners Handbook”). The arbitration provision appears on pages 12-14 of the Owner’s Handbook and states, in relevant part, that the parties “each agree that any claim or disputes between us (including between you and any of our affiliated companies) related or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, and any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty . . . shall be resolved by binding arbitration at either your or our election even if the claim is initially filed in a court of law . . .” (Declaration of Simran Viridi at p. 12.) It goes on for another page and a half, toward the end of which it states: “This agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. § 1-16.” (*Id.* at p. 14.)